

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MARIN**

DATE: 07/10/26      TIME: 1:30 P.M.      DEPT: L      CASE NO: CV0008457

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

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| PLAINTIFF:      BLUE SKY FOREVER |  |
| vs.                              |  |
| DEFENDANT:    JCONCEPTS, INC.    |  |

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NATURE OF PROCEEDINGS: MOTION – OTHER: TO APPROVE PROPOSITION 65  
SETTLEMENT AND CONSENT JUDGMENT

**RULING**

Plaintiff Blue Sky Forever filed a motion to approve a Proposition 65 settlement and consent judgment. Plaintiff seeks approval of a settlement reached in this action involving alleged violations of Health and Safety Code § 25249.6 et seq. (“Proposition 65”), and requests the Court approve the “Consent Judgment,” setting forth the terms and conditions of the parties’ settlement.

Defendant has not filed a response, nor was an opposition to the motion for approval filed. The failure to oppose is considered consent to the granting of the motion. (Cal. Rules of Court, rule 8.54(c); Local Rule Marin, Civil 2.8G.1.) Plaintiff’s motion is therefore GRANTED in it’s entirety.

Should either party wish to contest this tentative ruling, it shall be heard on Friday, July 17, 2026, at 1:30 pm.

Plaintiff to lodge the order.

***Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.***

***IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.***

***FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).***

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MARIN**

DATE: 07/10/26      TIME: 1:30 P.M.      DEPT: L      CASE NO: CV0009430

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

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|------------------------------------|--|
| PLAINTIFF:      MICHAEL PARTOW     |  |
| vs.                                |  |
| DEFENDANT:    JUSTIN HILTON, ET AL |  |

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NATURE OF PROCEEDINGS: DEMURRER

**RULING**

Defendants' demurrer to the Second and Third Causes of Action is sustained, with leave to amend, on the limited grounds noted below. The demurrer is overruled in all other respects.

***Allegations in Plaintiff's Complaint***

Plaintiff Michael Partow filed his Complaint against Defendants Justin Hilton and Debra Evans on March 16, 2026, alleging that Defendants damaged his property at 55 Wildomar in Mill Valley while they were tenants. Plaintiff further alleges that Defendants owe \$1,075.94 more than what Plaintiff holds as a security deposit and also owe at least \$28,600 to cover the cost of the balance of required repairs. Plaintiff asserts causes of action for breach of the lease, negligence, and intentional misrepresentation.

***Procedural Deficiency***

The Court draws Defendants' attention to Local Rule 2.8(C)2, which requires attachment of the operative pleading as an exhibit to the demurrer.

***Standard***

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law, and it raises only a question of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint "ordinarily is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099 [citation and internal quotations omitted].) Legal conclusions are insufficient. (*Id.* at